

COMMITTEE ON PUBLIC SAFETY & LAW ENFORCEMENT
HOUSE OF REPRESENTATIVES AMENDMENTS TO S.B. 1538
(Reference to Senate engrossed bill)

1 Strike everything after the enacting clause and insert:

2 "Section 1. Title 23, chapter 6, article 4, Arizona Revised
3 Statutes, is amended by adding section 23-973, to read:

4 23-973. Coverage; midomafetamine; firefighters; peace
5 officers; post-traumatic stress disorder; annual
6 report; definitions

7 A. EMPLOYERS SHALL PROVIDE WORKERS' COMPENSATION COVERAGE TO
8 FIREFIGHTERS AND CERTIFIED PEACE OFFICERS WHO HAVE BEEN DIAGNOSED WITH
9 POST-TRAUMATIC STRESS DISORDER BY A LICENSED MENTAL HEALTH PROFESSIONAL
10 AND WHO HAVE AN ACCEPTED WORKERS' COMPENSATION CLAIM FOR POST-TRAUMATIC
11 STRESS DISORDER UNDER THIS TITLE. IF AN INDEPENDENT MEDICAL EXAMINATION
12 REVEALS THAT A TREATMENT PROTOCOL OF MIDOMAFETAMINE IS DEEMED A REASONABLE
13 AND NECESSARY TREATMENT AND FOLLOWS THE TREATMENT GUIDELINES ESTABLISHED
14 BY THE COMMISSION, WORKERS' COMPENSATION COVERAGE MAY INCLUDE ONE COMPLETE
15 COURSE OF A TREATMENT PROTOCOL OF MIDOMAFETAMINE AS PRESCRIBED BY A
16 PSYCHIATRIST.

17 B. MIDOMAFETAMINE PRESCRIBED UNDER THIS SECTION MUST MEET THE
18 REQUIREMENTS UNDER TITLE 36, CHAPTER 27 FOR A CONTROLLED SUBSTANCE.

19 C. ON OR BEFORE JANUARY 1, 2029 AND EACH JANUARY 1 THEREAFTER, THE
20 COMMISSION SHALL SUBMIT TO THE JOINT LEGISLATIVE BUDGET COMMITTEE A REPORT
21 OF THE COSTS OF TREATMENT FOR MIDOMAFETAMINE UNDER THIS SECTION FOR
22 FIREFIGHTERS AND CERTIFIED PEACE OFFICERS.

23 D. FOR THE PURPOSES OF THIS SECTION:

24 1. "CERTIFIED PEACE OFFICER" HAS THE SAME MEANING PRESCRIBED IN
25 SECTION 38-842.

26 2. "FIREFIGHTER" MEANS A PROFESSIONAL FIREFIGHTER WHO IS A MEMBER
27 OF A CITY, TOWN, COUNTY OR FIRE DISTRICT FIRE DEPARTMENT.

28 3. "LICENSED MENTAL HEALTH PROFESSIONAL" MEANS AN INDIVIDUAL WHO
29 SPECIALIZES IN TRAUMA AND CRISIS, WHO USES EVIDENCE-BASED TREATMENT
30 OPTIONS AND WHO IS LICENSED AS EITHER:

31 (a) A PSYCHIATRIST PURSUANT TO TITLE 32, CHAPTER 13 OR 17.

32 (b) A PSYCHOLOGIST PURSUANT TO TITLE 32, CHAPTER 19.1.

33 4. "TREATMENT PROTOCOL OF MIDOMAFETAMINE" MEANS A PROCESS OF
34 TREATMENT THAT HAS RECEIVED APPROVAL FROM THE UNITED STATES FOOD AND DRUG
35 ADMINISTRATION FOR POST-TRAUMATIC STRESS DISORDER AND THAT USES
36 MIDOMAFETAMINE IN CONJUNCTION WITH THERAPY SESSIONS.

37 Sec. 2. Section 36-2511, Arizona Revised Statutes, as amended by
38 Laws 2021, chapter 61, section 12, is amended to read:

39 36-2511. Nomenclature

1 The controlled substances listed or to be listed in the schedules in
2 sections 36-2512, 36-2513, 36-2514, 36-2515, 36-2516, ~~and~~ 36-2517 ~~AND~~
3 ~~36-2517.03~~ or the rules adopted pursuant to this article are included by
4 whatever official, common, usual, chemical or trade name designated.

5 Sec. 3. Section 36-2511, Arizona Revised Statutes, as amended by
6 Laws 2025, chapter 231, section 1, is amended to read:

7 ~~36-2511.~~ Nomenclature

8 The controlled substances listed or to be listed in the schedules in
9 sections 36-2512, 36-2513, 36-2514, 36-2515, 36-2516, 36-2517, ~~and~~
10 36-2517.02 ~~AND~~ ~~36-2517.03~~ or the rules adopted pursuant to this article
11 are included by whatever official, common, usual, chemical or trade name
12 designated.

13 Sec. 4. Title 36, chapter 27, article 2, Arizona Revised Statutes,
14 is amended by adding section 36-2517.03, to read:

15 ~~36-2517.03.~~ United States food and drug administration;
16 approved medication; rescheduling

17 ANY COMPOUND, MIXTURE OR PREPARATION THAT CONTAINS 3,
18 4-METHYLENEDIOXYMETHAMPHETAMINE AND THAT IS APPROVED BY THE UNITED STATES
19 FOOD AND DRUG ADMINISTRATION AND RESCHEDULED BY THE UNITED STATES DRUG
20 ENFORCEMENT ADMINISTRATION TO A SCHEDULE OTHER THAN SCHEDULE I OF THE
21 CONTROLLED SUBSTANCES ACT (P.L. 91-513; 84 STAT. 1242; 21 UNITED STATES
22 CODE SECTIONS 801 THROUGH 904) IS A CONTROLLED SUBSTANCE FOR THE PURPOSES
23 OF THIS CHAPTER AND MAY BE PRESCRIBED IN THIS STATE.

24 Sec. 5. Conditional enactment; notice; industrial commission
25 duties

26 A. Section 23-973, Arizona Revised Statutes, as added by this act,
27 does not become effective unless on or before January 1, 2029 the United
28 States food and drug administration approves the use of midomafetamine to
29 treat post-traumatic stress disorder.

30 B. The executive director of the Arizona state board of pharmacy
31 shall notify the director of the Arizona legislative council and the
32 director of the industrial commission of Arizona in writing on or before
33 February 1, 2029 either:

34 1. Of the date on which the condition was met.

35 2. That the condition was not met.

36 C. On notification from the Arizona state board of pharmacy that
37 the condition has been met, the industrial commission of Arizona shall
38 assign reimbursement values in its schedule of fees and publish guidelines
39 on billing and reimbursement practices for midomafetamine.

40 Sec. 6. Conditional enactments; notice

41 A. Section 36-2511, Arizona Revised Statutes, as amended by Laws
42 2021, chapter 61, section 12 and this act, and section 36-2517.03, Arizona
43 Revised Statutes, as added by this act, do not become effective unless on
44 or before January 1, 2029 a 3, 4-methylenedioxymethamphetamine
45 investigational product is newly approved as a prescription medication
46 pursuant to 21 United States Code section 355 and is controlled under a

1 federal interim final rule issued pursuant to 21 United States Code
2 section 811(j) and published in the Federal Register.

3 B. Section 36-2511, Arizona Revised Statutes, as amended by Laws
4 2025, chapter 231, section 1 and this act, does not become effective
5 unless both the condition prescribed by Laws 2025, chapter 231, section 5,
6 subsection A is met and on or before January 1, 2029 a 3,
7 4-methylenedioxymethamphetamine investigational product is newly approved
8 as a prescription medication pursuant to 21 United States Code section 355
9 and is controlled under a federal interim final rule issued pursuant to 21
10 United States Code section 811(j) and published in the Federal Register.

11 C. The executive director of the Arizona state board of pharmacy
12 shall notify in writing the director of the Arizona legislative council on
13 or before February 1, 2029 either:

- 14 1. Of the date on which the condition was met.
15 2. That the condition was not met."

16 Amend title to conform

And, as so amended, it do pass

DAVID MARSHALL, SR.
CHAIRMAN

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